

25NWCV03818 25NWCV03818

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Case Number: 25NWCV03818 Hearing Date: September 9, 2026 Dept: C

RAMIREZ vs

PHILLIPS

CASE NO.: 25NWCV03818

HEARING: 9/9/26 @ 9:30 a.m.

#14

TENTATIVE ORDER

Defendant KEVIN PHILLIPS's Motion to Compel Further

Responses to Special Interrogatories, Set One, is DENIED. Defendant's Motion to Compel Further Response to Request for Admissions, Set One, is DENIED. No sanctions are imposed.

Plaintiff to give notice.

BACKGROUND

This action arises from a vehicle collision that occurred on January 29, 2024, on the eastbound I-105 near the Bellflower exit. The parties were traveling in the carpool lane when Defendant rear ended Plaintiff's vehicle. (Complaint, PLD-PI-001 (2), p. 5.)

On August 19, 2026, this Court ordered the parties to meet and confer as required by Code. If counsel was unable to informally resolve their discovery disputes, then counsel was instructed to submit a joint separate statement by September 2, 2026.

On September 3, 2026, Defendant filed a Joint Status Statement indicating that the parties were at an impasse.

LEGAL STANDARD

Code of Civil Procedure section 2031.310 allows a party to file a motion compelling further answers to document requests if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Section 2031.310 allows a party to file a motion compelling further answers to request for admissions if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. The motion shall be accompanied with a meet and confer declaration. (Code Civil Proc., § 2031.310, subd. (b).)

To establish good cause, the burden is on the moving party to show: (1) relevance to the subject matter and (2) specific facts justifying discovery. (Glenfed Develop. Corp. v. Sup. Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117; see also Kirkland v. Sup. Ct. (Guess?, Inc.) (2002) 95 Cal.App.4th 92, 98.)

A motion to compel further responses to requests for documents shall be accompanied with a meet and confer declaration. (Code Civ. Proc., § 2031.310, subd. (b).)

DISCUSSION

Special Interrogatories, Set One, Nos. 3, 5, 7, 36, 37, and 46

Defendant moves to compel further verified code-complaint responses to Special Interrogatories, Set One, Nos. 3, 5, 7, 36, 37, and 46.

1.

Special Interrogatories Nos. 3, 5, and 7

Special Interrogatories Nos. 3, 5, and 7 pertain to identifying the specific injuries and the duration and symptoms of said

injuries.

SPECIAL INTERROGATORY No. 3: Identify each specific injury YOU sustained in the INCIDENT for which YOU intend to seek compensation for at the time of trial. (Please note that identifying areas of "pain" will not suffice for purposes of this interrogatory)

PLAINTIFF'S RESPONSE: Neck; Left shoulder; Left arm; Lower back; Left knee; Loss of sleep and emotional injuries (secondary to orthopedic injuries)

SPECIAL INTERROGATORY NO. 5: State the duration for which YOU experienced the symptom(s) of each specific injury identified in YOUR response to Special Interrogatory No. 3 above for which YOU will seek compensation at the time of trial.

PLAINTIFF'S RESPONSE: Objection. This interrogatory violates CCP § 2030.060(d) in that each interrogatory shall be full and complete in and of itself and not refer to another interrogatory. Without waiving the foregoing objection, Plaintiff replies as follows: Neck: 01/29/2024-present; Left shoulder: 01/29/2024-present; Left arm: 01/29/2024-present; Lower back; 01/29/2024-present; Left knee: 01/29/2024-present; Emotional injuries (secondary to orthopedic injuries).

SPECIAL INTERROGATORY NO. 7: State how often YOU are currently experiencing the symptoms of each specific injury identified in YOUR response to Special Interrogatory No. 3 above for which you will seek compensation at the time of trial.

PLAINTIFF'S RESPONSE: Objection. This interrogatory violates CCP § 2030.060(d) in that each interrogatory shall be full and complete in and of itself and not refer to another interrogatory. Without waiving the foregoing objection, Plaintiff replies as follows: Neck: daily; Left shoulder: intermittently; Left arm: intermittently; Lower back; intermittently; Left knee: intermittently;

Section 2030.220 provides that "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits; (b) If an interrogatory cannot be answered completely, it shall be answered to the extent

possible; (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

Defendant argues that Plaintiff responded only with identified areas of the body, which does not articulate or specify what the injury is, with cited areas of the body being vague and ambiguous as to what the injuries in question are.

Plaintiff asserts that listing the affected body parts satisfies CCP § 2030.220(a) without forcing Plaintiff or counsel—who are not medical doctors—to improperly self-diagnose or supply formal clinical diagnoses that belong in medical records and expert discovery. Plaintiff additionally contends that the special interrogatories are duplicative of Form Interrogatory Nos. 6.2, 6.3, and 10.1, which Defendant did not take issue with.

The Court determines that Plaintiff has sufficiently responded to Special Interrogatories Nos. 3, 5, and 7 given Plaintiff responds to the request to the extent he is capable. The Court notes Plaintiff's inability to self-diagnose injuries.

2.

Special Interrogatories Nos. 36 and 37

Special Interrogatories Nos. 36 and 37 pertain to when Plaintiff first contacted counsel and retained counsel, respectively.

SPECIAL INTERROGATORY NO. 36: State the date you first contacted a lawyer regarding the INCIDENT.

PLAINTIFF'S RESPONSE: Objection. This responding party objects to this interrogatory on the grounds that it is vague, ambiguous, and overly broad as to the subject matter, is not relevant and not reasonably calculated to lead to the discovery of admissible evidence. Further, the interrogatory seeks information in violation of the attorney work-product privilege and attorney-client privilege; it violates rights to privacy and confidentiality; it is burdensome, oppressive, harassing and seeks information without limitation as to time, scope and manner, is unintelligible, calls for

speculation, and lacks foundation.

SPECIAL INTERROGATORY NO. 37: State the date you first retained a lawyer regarding the INCIDENT.

PLAINTIFF'S RESPONSE: Objection. This responding party objects to this interrogatory on the grounds that it is vague, ambiguous, and overly broad as to the subject matter, is not relevant and not reasonably calculated to lead to the discovery of admissible evidence. Further, the interrogatory seeks information in violation of the attorney work-product privilege and attorney-client privilege; it violates rights to privacy and confidentiality; it is burdensome, oppressive, harassing and seeks information without limitation as to time, scope and manner, is unintelligible, calls for speculation, and lacks foundation.

Defendant argues that the Special Interrogatories pertain to when Plaintiff first contacted counsel and retained counsel, respectively. These requests do not seek any attorney-client or other privileged information.

Plaintiff maintains Defendant failed to establish relevance under CCP § 2017.010, as legal representation timelines have no bearing on liability or damages in a standard rear-end collision.

The Court determines that Plaintiff has sufficiently responded to Special Interrogatories Nos. 36 and 37 given it is Defendant's burden to establish good cause for the requests and here Defendant fails to do so. Defendant fails to provide what the relevance of Plaintiff's timeline for hiring counsel is with Defendant's liability for allegedly rear-ending Plaintiff.

3.

Special Interrogatory No. 46

Special Interrogatory No. 46 requests whether any injuries are new or exacerbated.

SPECIAL INTERROGATORY NO. 46: State whether each injury claimed in this matter is either a new injury or an exacerbation of a preexisting condition. PLAINTIFF'S RESPONSE: Neck - new injury; Left shoulder - new injury; Left arm – exacerbation; Lower back - new injury; Left knee - new

injury;

Again, Defendant argues that Plaintiff responded only with identified areas of the body, which does not articulate or specify what the injury is, with cited areas of the body being vague and ambiguous as to what the injuries in question are.

Plaintiff likewise asserts that listing the affected body parts satisfies CCP § 2030.220(a) without forcing Plaintiff or counsel—who are not medical doctors—to improperly self-diagnose or supply formal clinical diagnoses that belong in medical records and expert discovery.

The Court determines that Plaintiff has sufficiently responded to Special Interrogatories No. 46 given Plaintiff responds to the request to the extent he is capable. The Court notes Plaintiff's inability to self-diagnose injuries.

Request for Admission, Set One, No. 24

REQUEST FOR ADMISSION NO. 24: Admit your attorney referred you to medical providers for treatment of your alleged injuries.

PLAINTIFF'S RESPONSE: Objection. This request seeks information protected from disclosure by the attorney-client privilege and the attorney work product doctrine.

Plaintiff maintains that he properly asserted an objection under CCP § 2033.230(b) because asking whether counsel referred Plaintiff to medical providers directly seeks confidential attorney-client communications protected under Evidence Code § 954 and invades the attorney work-product doctrine under CCP § 2018.030 by targeting counsel's strategy and legal theories.

The Court finds that Plaintiff has sufficiently objected to RFA No. 24. Whether counsel referred Plaintiff to medical providers reflects a confidential communication made in the course of legal representation under Evidence Code § 954. The fundamental purpose behind the attorney-client privilege is to safeguard the confidential relationship between clients and their attorneys so as to promote full and open discussion of the facts and tactics surrounding individual legal matters. Requiring further response

to this request would contravene the purpose of the statute. (Carroll v. Commission on Teacher Credentialing (2020) 56 Cal.App.5th 365.) When and if Plaintiff discloses the identity and/or records of any medical provider referred to Plaintiff by counsel, Defendant may then obtain the information sought.

Sanctions

The court shall impose a monetary sanction against the party who unsuccessfully makes or opposes a motion to compel further responses to demand for production of documents unless the party subject to the sanction acted with substantial justification or the sanction would otherwise be unjust.

(CCP § 2031.310(h).)

Because the motion was unsuccessful, the Court declines to impose sanctions.